

25STCV03852 25STCV03852

County: los-angeles

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Case Number: 25STCV03852 Hearing Date: August 17, 2026 Dept: 508

Superior Court of California

County of Los Angeles

Department

508

BRITECAP

FINANCIAL, LLC,

Plaintiff,

vs.

JAVIER MORA, an

individual and sole proprietor of DJ VENTURA ATTORNEY SERVICES,

Defendant.

Case No.:

25STCV03852

Hearing Date:

August 17, 2026

Hearing Time: 2:00 p.m.

[TENTATIVE] ORDER RE:

PLAINTIFF

BRITECAP FINANCIAL, LLC'S MOTION FOR JUDGMENT ON THE PLEADINGS

Background

Plaintiff BriteCap Financial, LLC ("BriteCap") initiated this action against Defendant Javier Mora, an individual and sole proprietor of DJ Ventura Attorney Services ("Mora"), on February 11, 2025, alleging three causes of action for (1) common counts, (2) common counts, and (3) breach of contract

Mora filed an answer on May 7, 2025.

BriteCap now moves for judgment on the pleadings. Mora did not respond.

Legal
Standard

"A [plaintiff] may move for judgment on the pleadings" when "the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint." (Code Civ. Proc., § 438, subds. (b)(1) and (c)(1)(A).) "A motion for judgment on the pleadings performs the same function as a general demurrer, and hence attacks only defects disclosed on the face of the pleadings or by matters that can be judicially noticed. [Citations.] Presentation of extrinsic evidence is therefore not proper on a motion for judgment on the pleadings." (Cloud v. Northrop Grumman Corp. (1998) 67 Cal.App.4th 995, 999, citations omitted.)

The standard for ruling on a motion for judgment on the pleadings is essentially the same as that applicable to a general demurrer: that under the state of the pleadings, together with matters that may be judicially noticed, it appears

that a party is entitled to judgment as a matter of law. (Schabarum v. California Legislature (1998) 60 Cal.App.4th 1205, 1216.)

The court “must accept as true all material facts properly pleaded, but does not consider conclusions of law or fact, opinions, speculation, or allegations contrary to law or facts that are judicially noticed.” (Stevenson Real Estate Services, Inc. v. CB Richard Ellis Real Estate Services, Inc. (2006) 138 Cal.App.4th 1215, 1219-1220.)

Discussion

BriteCap

moves for judgment on the pleadings on Mora’s answer to the complaint because “the entire complaint states facts sufficient to constitute causes of action against the Defendant, and the Defendant’s Answer admits to all of the facts and allegations contained therein.” (Notice of Mot., 1:24-26.) BriteCap requests a total judgment of \$36,033.36, comprising \$35,508.36 sought in the complaint, \$435.00 for a filing fee, and \$90.00 for service of process.

A. Allegations of the Complaint

For

the first cause of action, common counts, BriteCap’s complaint alleges that Mora became indebted to BriteCap within the last four years, “because an account was stated in writing by and between plaintiff and defendant in which it was agreed that defendant was indebted to plaintiff.” (Compl., p. 3, CC-1, a(2).) As for the second common counts cause of action, BriteCap alleges Mora became indebted to BriteCap within the last four years “for money lent by plaintiff to defendant at defendant’s request.” (Compl., p. 4, CC-1, b(4).) The third cause of action for breach of contract alleges that BriteCap and Mora entered into a written agreement on April 22, 2024, and on July 12, 2024, Mora breached the agreement by “[f]ailing to remit any further payments to the Plaintiff under the loan.” (Compl., p. 5, BC-1, a, BC-2.) The complaint alleges that BriteCap “performed all obligations to defendant except those obligations plaintiff was prevented or excused from performing.” (Compl., p. 5, BC-3.) BriteCap alleges it suffered damages in the amount of \$35,508.36. (Compl., p. 5, BC-4.) BriteCap attached the parties’ loan agreement to the complaint. (Compl., Ex. 1.)

B.

Answer to the Complaint

Mora's answer to the complaint alleges

the following: he is "self-employed by DJ VENTURA ATTORNEY SERVICES[.] I have first-hand knowledge of the following facts and if called upon to do so could and would testify competently to them." (Answer, ¶ 1.) "I Admit All claims on complaint[.] On February 11, 2025, I tried to make an arrangement regarding lower payments due to lack of work we've been [sic] losing some clients at the time and before this complaint was filed , My company was directed financially damage by L.A. Fires due to this event some clients have to resined [sic]." (Answer, ¶ 2.) "For a period of time I was paying this loan for about 43% and then financial problems strocke [sic] the company. I proceeded to ask the financial teller Lamar how can we resolve this without going to court, if is possible to make some arrearagments [sic] of lower monthly payments of \$300.00 as to the whereabouts of the document and she informed me that they had no record of the document ever being submitted to them. The clerk then suggested that I should submit another copy of the document." (Answer, ¶ 3.) In Mora's prayer, he requests that "Britecap Financial, LLC deny relief requested for me to parforme [sic] on lower monthly payments in order to continue paying it off." (Answer, 2:18-19.)

C.

Discussion

In

support of the instant motion, BriteCap cites Hardy
v. Admiral Oil Co. (1961) 56

Cal.2d 836. There, the trial court entered judgment for the
plaintiff on the pleadings, without leave to amend. (Id.
at p. 842.) The Supreme

Court found that the trial court did not abuse its discretion because the
defendant "had previously been given three successive opportunities to amend
and thus had ample notice of the defective state of its pleadings, yet had
repeatedly failed to remedy such defects." (Ibid.) The court stated that the defendant's failure
to file a "pleading alleging that the contract as pleaded does not express the
true agreement and seeking to reform it" was a "fatal admission[.]". (Id. at
p. 841.)

BriteCap

asserts that "Pursuant to Code of Civil Procedure

Section 438 and case law cited above, Plaintiff is entitled to a judgment

on the pleadings. Plaintiff filed its complaint on March 19, 2025 and Defendant filed its answer on May 7, 2025. In its complaint, Plaintiff sufficiently stated facts to sustain its cause of action for Account Stated, Money Lent, Open Book Account, Breach of Written Contract, and Breach of Written Guarantee. Defendant's Answer admitted all these allegations. Therefore, judgment should be entered in favor of Plaintiff for the relief prayed for in their complaint." (Mot., 4:16-22.)

Mora's answer to the complaint explicitly states that "I Admit All claims on complaint." (Answer, ¶ 2.) Mora does not allege any defenses. Additionally, BriteCap's complaint adequately alleges its causes of action against Mora and attaches the loan agreement. Based on this, BriteCap is entitled to judgment on the pleadings. Mora did not file an opposition, so no request to amend was made.

Conclusion

Based on the foregoing, BriteCap's motion for judgment on the pleadings is GRANTED, without leave to amend. Mora is ordered to file an amended answer, if any, within 20 days of the date of this Order. The Court will sign the proposed judgment.

BriteCap is ordered to give notice of this Order.

DATED: August
17, 2026

Hon. Teresa A. Beaudet

Judge, Los Angeles Superior
Court